

**UNITED STATES DISTRICT COURT
MIDDLE DISTRICT OF FLORIDA
TAMPA DIVISION**

MATTHEW AARON DAVIS,

Plaintiff,

v.

Case No. 8:24-cv-2907-KKM-NHA

STATE OF FLORIDA,

Defendants.

_____ /

REPORT AND RECOMMENDATION

I recommend Plaintiff's motion to proceed without pre-paying the filing fee (Doc. 19) be denied, and that his Sixth Amended Complaint (Doc. 18) be dismissed, because, although he has been given numerous opportunities to do so, Plaintiff has failed to state a viable, non-frivolous claim.

I. Background

On December 16, 2024, Plaintiff Matthew Aaron Davis filed an action against the Pasco County State Attorney Office, the Pasco County Sheriff, the Pasco County Public Defender, and the Pasco County Clerk of Court, alleging Defendants violated Plaintiff's constitutional rights and the Posse Comitatus Act when they arrested him, maliciously prosecuted him, failed to turn over exculpatory evidence, coerced him into a plea deal, interfered with his parental rights, and facilitated the human trafficking of his children. Doc. 1. Alongside

his Complaint, Plaintiff made a motion to proceed without paying the filing fee. Doc. 2.

One week later, before the Court had considered Plaintiff's initial Complaint, Plaintiff filed an Amended Complaint. Doc. 3. The Amended Complaint again alleged claims under 42 U.S.C. § 1983 and the Posse Comitatus Act for Defendants' allegedly "false arrest, false imprisonment, malicious prosecution, and deprivation of due process" and for the "systematic human trafficking involving Plaintiff's children." Doc. 3 at pp. 4–5. The Court dismissed the Amended Complaint without prejudice, finding that it was a shotgun pleading because it "assert[ed] conclusory facts that [we]re not obviously connected to any particular cause of action, and instead ma[de] legal conclusions" and did "not specify which causes of action appl[ied] to which defendant." Doc. 4. The Court gave Plaintiff leave to file a new complaint on or before January 9, 2025. Doc. 4 at p. 3. Additionally, the Court dismissed Plaintiff's motion to proceed without pre-paying the filing fee. Doc. 5.

On January 2, 2025, Plaintiff filed a Second Amended Complaint. Doc. 6. Before the Court reviewed the Second Amended Complaint, Plaintiff filed a Third Amended Complaint. Doc. 7. The Third Amended Complaint only named one Defendant, the State Attorney's Office in Pasco County, which he charged with "pursuing criminal charges . . . without probable cause," arresting him "on blatantly false charges of aggravated assault" and coercing him into a plea

deal. *Id.* at p. 4. He brought claims under 42 U.S.C. § 1983 for violations of his Fourth, Eighth, and Fourteenth Amendment rights. Doc. 4 at p. 5. The Court dismissed the Third Amended Complaint, but gave Plaintiff leave to file a Fourth Amended Complaint no later than February 20, 2025, and directed him to either pay the filing fee or submit a new motion to proceed without pre-paying the filing fee along with his amended complaint. Doc. 9.

On February 20, 2025, Plaintiff submitted both a Fourth Amended Complaint (Doc. 10), and a renewed motion to proceed without pre-paying the filing fee (Doc. 11). In the Fourth Amended Complaint, Plaintiff named one defendant, the State of Florida, although he noted that the state acts through various divisions, including the Pasco County Sheriff's Office, the Department of Children and Families, the State Attorney's Office, the Pasco County Public Defender's Office and the Pasco County Clerk of Court. Doc. 10 at ¶ 4. Plaintiff alleged that the State of Florida violated numerous Amendments to the United States Constitution, as well as a criminal statute. I recommended that this complaint be dismissed because the Eleventh Circuit barred Plaintiff's constitutional tort claims against the State of Florida, because the Fourth Amended Complaint fell short of the federal pleading standards, and because Plaintiff could not bring a civil claim under the criminal statute he alleged the defendant violated. Doc. 13 at pp. 8–14. Before the District Court considered that recommendation, Plaintiff filed a Fifth Amended Complaint. Doc. 14. The

District Court then adopted the recommendation, denied without prejudice Plaintiff's motion to proceed without the filing fee, dismissed without prejudice the Fourth Amended Complaint, struck the Fifth Amended Complaint, and ordered Plaintiff to either pay the filing fee, or file a new complaint and move again to proceed in forma pauperis, by May 2, 2025. Doc. 17.

On April 4, 2025, Plaintiff filed a Sixth Amended Complaint.¹ Docs. 18, 19. The Sixth Amended Complaint names two defendants: Chris Nocco, in his official capacity as Sheriff of Pasco County, and the Pasco County Sheriff's Office. 6th Am. Compl. (Doc. 18) at ¶¶ 4–5. Plaintiff alleges the following facts:

Plaintiff was arrested for domestic battery on December 10, 2020. Doc. 18 at ¶ 7. Plaintiff was released on bond two days later. *Id.* at ¶ 8. On February 11, 2021, the domestic battery charges were dropped. *Id.* at ¶ 9.

Plaintiff argues that, because the state attorney declined to prosecute, no probable cause existed for his arrest in the first place. *Id.* at ¶ 14. Plaintiff brings Section 1983 claims against Defendants for violating his Fourth and Fourteenth Amendment rights by wrongfully arresting him and holding him in custody for two days.

¹ A Seventh Amended Complaint (Doc. 20) and a new motion to proceed without pre-paying the filing fee (Doc. 21) were also filed, but Plaintiff moved to strike them (Doc. 23), alleging that they had been filed without his permission. The Court granted his motion to strike (Doc. 24)

In his prayer for relief, Plaintiff seeks compensatory damages, punitive damages, safe passage to his home in New York, and attorneys' fees and costs. *Id.* at p. 6.

II. Standard of Review/Applicable Law

The federal statute that governs the right to bring a lawsuit without pre-paying a filing fee, 28 U.S.C. § 1915, “is designed to ensure that indigent litigants have meaningful access to the federal courts.” *Neitzke v. Williams*, 490 U.S. 319, 324 (1989). Accordingly, the statute permits a litigant to commence an action in federal court “by filing in good faith an affidavit stating . . . that he is unable to pay the costs of the lawsuit.” *Id.* “Congress recognized, however, that a litigant whose filing fees and court costs are assumed by the public, unlike a paying litigant, lacks an economic incentive to refrain from filing frivolous, malicious, or repetitive lawsuits.” *Id.* To that end, Section 1915 provides that a court shall dismiss a case if the court determines the action is frivolous or malicious, fails to state a claim on which relief may be granted, or seeks monetary relief against a defendant who is immune from such relief. 28 U.S.C. § 1915(e)(2)(B). An action is frivolous when a complaint lacks an arguable basis either in law or in fact. *Neitzke*, 490 U.S. at 325.

Federal courts must hold pro se filings (meaning those papers filed by a party who represents himself) to “less stringent standards than formal pleadings drafted by lawyers.” *Haines v. Kerner*, 404 U.S. 519, 520 (1972). More

specifically, a court must “provide[] pro se parties wide latitude when construing their pleadings and papers” and to “use common sense to determine what relief the party desires.” *S.E.C. v. Elliot*, 953 F.2d 1560, 1582 (11th Cir. 1992). Nonetheless, courts need not exempt pro se litigants from complying with the requirements imposed by the law and rules of procedure. *See Brown v. Crawford*, 906 F.2d 667, 670 (11th Cir. 1990); *Moon v. Newsome*, 863 F.2d 835, 837 (11th Cir. 1989).

III. Analysis

A. Plaintiff's Does Not State Viable Claims Against Defendant Nocco

Plaintiff asserts Section 1983 claims against Defendant Nocco predicated upon his supervisory position as the Sheriff of Pasco County (*id.* at ¶ 5), but “[i]t is well established in this [c]ircuit that supervisory officials are not liable under [Section] 1983 for the unconstitutional acts of their subordinates on the basis of respondeat superior or vicarious liability.” *Keith v. DeKalb Cnty.*, Georgia, 749 F.3d 1034, 1047 (11th Cir. 2014) (quoting *Cottone v. Jenne*, 326 F.3d 1352, 1360 (11th Cir. 2003)). Under Section 1983, a supervisor is only liable when the supervisor personally participates in the alleged misconduct or when there is a causal connection between the supervising official’s actions and the alleged constitutional deprivation. *Cottone*, 326 F.3d at 1360. “The necessary causal connection can be established when [(1)] a history of widespread abuse puts the responsible supervisor on notice of the need to

correct the alleged deprivation, and he fails to do so[; (2)] when a supervisor's custom or policy . . . result[s] in deliberate indifference to constitutional rights[;] or [3] when . . . the supervisor directed the subordinates to act unlawfully or knew that the subordinates would act unlawfully and failed to stop them from doing so." *Id.* Ultimately, "the standard by which a supervisor is held liable in [his] individual capacity for the actions of a subordinate is extremely rigorous." *Id.* (internal quotation marks omitted)

Because Plaintiff made no allegation that Defendant Nocco was personally involved in the alleged constitutional violations, Plaintiff needed to plead facts showing a causal connection. *Id.* Plaintiff did not. There is no factual allegation: (1) of a widespread history of Pasco deputies making warrantless arrests; (2) of any "custom or policy" of unlawfully arresting people without warrants; or (3) that Defendant Nocco directed deputies to "act unlawfully" or knew that they would do so and failed to stop them. *See id.*

Therefore, Plaintiff's claims against Defendant Nocco fail.

B. Plaintiff Does Not State Claims Against the Pasco County Sheriff's Office.

Plaintiff also asserts Section 1983 claims against the Pasco County Sheriff's Office. But the Pasco County Sheriff's Office cannot be sued for these claims. Whether an entity like the sheriff's office can be sued is "determined by the law of the state in which the district court is held," and "Florida law has

not established Sheriff's offices as separate legal entities with the capacity to be sued. *Dean v. Barber*, 951 F.2d 1210, 1214 (11th Cir. 1992) (citation and internal quotation marks omitted). "Thus, . . . [a sheriff's office] is not a legal entity with the capacity to be sued under Florida law." *Faulkner v. Monroe Cnty. Sheriff's Dep't*, 523 F. App'x 696, 701 (11th Cir. 2013); *Dean*, 951 F.2d at 1214 ("[T]he Jefferson County Sheriff's Department is not a legal entity and, therefore, is not subject to suit or liability under section 1983."). Thus, Plaintiff cannot state claims against Defendant Pasco County Sheriff's Office.

Moreover, had Plaintiff named Pasco County as a defendant instead, it would not have saved his claims. This is because the Supreme Court has limited when a local-government entity (e.g., a county or city) can be found liable under Section 1983. *Monell v. Dep't of Soc. Servs. of City of N.Y.*, 436 U.S. 658 (1978); *Grech v. Clayton Cnty., Ga.*, 335 F.3d 1326, 1329 (11th Cir. 2003). Specifically, "under § 1983, local governments are responsible only for 'their own illegal acts.'" *Connick v. Thompson*, 563 U.S. 51, 60 (2011) (quoting *Pembaur v. Cincinnati*, 475 U.S. 469, 479. In other words, "a [county] is 'liable under section 1983 only for acts for which the [county] is actually responsible.'" *Grech*, 335 F.3d at 1329 (alterations in original) (quoting *Marsh v. Butler County*, 268 F.3d 1014, 1027 (11th Cir. 2001) (*en banc*)). This means that a county's liability under Section 1983 may not be based on the doctrine of respondeat superior, meaning it does not incur liability for injuries caused

solely by its employees. *McDowell v. Brown*, 392 F.3d 1283, 1289 (11th Cir. 2004) (collecting cases). “It is only when the ‘execution of the government’s policy or custom . . . inflects the injury’ that the municipality may be held liable.” *Id.* (quoting *City of Canton v. Harris*, 489 U.S. 378, 385 (1989)). So, “to impose § 1983 liability on a municipality, a plaintiff must show that: (1) his or her constitutional rights were violated; (2) the municipality had a custom or policy that constituted deliberate indifference to that constitutional right; and (3) that policy or custom caused the constitutional violation.” *Id.* (citing *Canton*, 489 U.S. at 388).

The Sixth Amended Complaint contains no allegations of any overarching custom or policy. *See* Doc. 18. Accordingly, Plaintiff would fail to state a Section 1983 claim against Pasco County as well.

IV. Conclusion

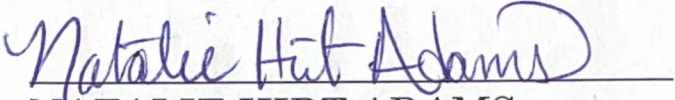
For the reasons stated, I find that Plaintiff fails to state a viable, non-frivolous claim. Given that this is Plaintiff’s sixth amendment, I recommend that his Complaint be dismissed with prejudice.²

² The Eleventh Circuit has repeatedly affirmed the *with*-prejudice dismissal of frivolous Section 1983 complaints. *See, e.g., Broner v. Wash. Mut. Bank, F.A.*, 258 F. App’x 254, 256–57 (11th Cir. 2007) (“[T]he district court did not abuse its discretion in finding her complaint frivolous and did not err in finding that it failed to state a claim. Accordingly, her complaint was properly dismissed with prejudice, pursuant to § 1915(e)(2).”); *Nails v. Franklin*, 279 F. App’x 899, 901 (11th Cir. 2008) (“We agree that Plaintiff’s suit is frivolous and should be dismissed with prejudice.”).

Accordingly, I respectfully **RECOMMEND** that:

- (1) Plaintiff's motion to proceed in forma pauperis (Doc. 19) be DENIED;
- (2) Plaintiff's Sixth Amended Complaint (Doc. 18) be DISMISSED with prejudice; and
- (3) This action be CLOSED.

SUBMITTED on May 7, 2025.



NATALIE HIRT ADAMS
United States Magistrate Judge

NOTICE TO PARTIES

A party has fourteen days from this date to file written objections to the Report and Recommendation's factual findings and legal conclusions. A party's failure to file written objections waives that party's right to challenge on appeal any unobjected-to factual finding or legal conclusion the district judge adopts from the Report and Recommendation. *See* 11th Cir. R. 3-1. To expedite resolution, parties may file a joint notice waiving the 14-day objection period.